

Court No. - 21

Case :- WRIT - C No. - 10955 of 2017

Petitioner :- Sanjay Kumar Sharma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Dharendra Pratap Singh

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble V.K. Shukla, J.

Hon'ble Ashok Kumar, J.

Sanjay Kumar Sharma is before us with the grievance that the electricity bill in question that has been so made is incorrect.

On the matter being taken up today, Sri Anand Bhaskar Srivastava, Advocate submitted before us that under the Electricity Act, 2003 read with provisions of paragraph 6.5 of Electricity Supply Code, 2005 a remedial forum has been provided for redressal of such billing dispute and as such petitioner should avail the aforementioned forum in question.

We have proceeded to examine the provisions that has been contained in paragraph 6.5 of Electricity Supply Code, 2005 and as per provision that has been mentioned therein if the consumer disputes the accuracy of any bill or if there is an error of pecuniary then such a dispute can be raised by the consumer concerned before the licensee and the licensee in question is thereafter obligated to redress the same in accordance with law.

In view of this, we proceed to pass an order asking petitioner to approach the Competent Authority who would look into the grievance of the petitioner and shall the same in accordance with law within next three months from the date of a certified copy of this order is produced before him.

Disposed of.

Order Date :- 9.3.2017

S.S.